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Case Number: 23STCV25942 Hearing Date: August 17, 2026 Dept: 514

Watkins Real Estate Group v. Dunning

23STCV25942

Defendant's Motion for Summary Judgment

Tentative Ruling

The motion is denied.

Background

This case involves a dispute regarding the entry, possession, and occupation of real property located at 2652 South Palm Grove Avenue in Los Angeles (the "Property").

On October 23, 2023, Watkins Real Estate Group ("Plaintiff") filed the complaint in this action against Wesley Dunning ("Defendant") and Does 1 through 10 for trespass and damages.

On November 27, 2024, Defendant filed an answer.

On April 27, 2026, Defendant filed this motion for summary judgment. Plaintiff filed an opposition on July 9, and Defendant filed a reply on August 6.

The motion was initially set for hearing on July 29, 2026, and the Court continued the hearing to August 17.

Trial is set for September 22, 2026.

Legal Standard

“The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c, subdivision (c), “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

As to each cause of action as framed by the complaint, a defendant moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to show “that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2); see also Aguilar, *supra*, 25 Cal.4th at pp. 850-851; Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2); see also Aguilar, *supra*, 25 Cal.4th at pp. 850-851.)

The party opposing a motion for summary judgment or summary adjudication may not simply “rely upon the allegations or denials of its pleadings” but must instead “set forth the specific facts showing that a triable issue of material fact exists.” (Code Civ. Proc., § 437c, subds. (p)(1) & (p)(2). To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive

evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Courts “liberally
construe the evidence in support of the party opposing summary judgment and
resolve doubts concerning the evidence in favor of that party.” (Dore v.
Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

Discussion

Certain facts in this matter are
undisputed.

Prior to April 26, 2022, the
Property was owned by the Eugene F. Dunning and Alice M. Dunning Revocable
Trust Dated June 9, 1999 (the “Trust”).
(Defendant’s Statement of Undisputed Material Facts [“DSUMF”], No. 1.) In or about 2013, Defendant moved into the
Property. (DSUMF, No. 2.)

Alice Dunning, trustee of the
Trust, died in November 2020. (DSUMF,
No. 5.)

On April 26, 2022, Plaintiff
purchased the Property from the Trust.
(DSUMF, No. 7.)

Defendant continued to occupy the
property. After serving Defendant with a
three-day notice to vacate, Plaintiff initiated an Unlawful Detainer proceeding
against Defendant (the “UD Proceeding”) in June 2022. (DSUMF, No. 10.) In October 2023, Plaintiff filed this
trespass action. (DSUMF, No. 12.)

On July 22, 2024, Defendant
purchased the Property from Plaintiff.
(DSUMF, No. 13.) The UD
Proceeding was dismissed four days later.
(DSUMF, No. 14.)

In support of his motion,
Defendant presents additional evidence. Defendant

states that he moved into the Property in 2013 pursuant to a written lease agreement with his mother, Alice Dunning, as trustee of the Trust, in which he agreed to pay \$250 per month to rent a room in the Property. (Dunning Decl., ¶¶ 3-4.) On about January 1, 2019, Defendant states, he entered into a further written agreement (the “Lease”) to extend his rental agreement ease (again at a rent of \$250 per month) through December 30, 2027. (Dunning Decl., ¶ 5 & Exh. A.)

The complaint in this action asserts a single cause of action for trespass.

“Trespass

is an unlawful interference with possession of property.” (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 261.) In general, owners of land “have a right to exclude persons from trespassing on private property; the right to exclude persons is a fundamental aspect of private property ownership.” (Id., at p. 258.)

The

essential elements of a cause of action for trespass, in this context, are: (1) that the plaintiff owned, leased, or controlled the property; (2) that the defendant intentionally, recklessly, or negligently entered the property; (3) that the plaintiff did not give the defendant permission to enter the property; (4) that the plaintiff was harmed; and (5) that the defendant’s entry was a substantial factor in causing the plaintiff’s harm. (McBride v. Smith (2018) 18 Cal.App.5th 1160, 1174; Ralphs Grocery Co., supra, 17 Cal.App.5th at pp. 261-262; Capogeanis v. Super. Ct. (1993) 12 Cal.App.4th 668, 674; Civic Western Corp. v. Zila Industries, Inc. (1977) 66 Cal.App.3d 1, 16-17; see also CACI No. 2000.)

It

is no defense to a cause of action for trespass that the defendant honestly, but mistakenly, believed that he had a right to be on the property. (Cassinis v. Union Oil Co. (1993) 14 Cal.App.4th 1770, 1780; Miller v. NBC (1986) 187 Cal.App.3d 1463, 1480-1481.) Where the trespass involves a physical intrusion into the property, nominal damages are available. (Staples v. Hoefke (1987) 189 Cal.App.3d 1397, 1406; see also San Diego Gas & Electric Co. v. Super. Ct. (1996) 13 Cal.4th 893, 936.)

Defendant now moves for summary

judgment, making essentially four arguments: (1) that it is undisputed that

Plaintiff entered the Property with permission of the then-owner (Mem. at pp. 5-6); (2) that Plaintiff has no non-speculative damages (Mem., at pp. 6-8); (3) that Plaintiff has no legal basis to recover attorney's fees (Mem., at p. 8); and (4) that the undisputed facts show that there is no basis for Plaintiff to recover punitive damages, as Defendant did not act with oppression, fraud, or malice (Mem., at p. 8.) The Court considers each of these arguments in turn.

First, Defendant argues that he has presented evidence (cited above) that he entered the Property pursuant to a written agreement with the owner. Defendant has no direct evidence that the lease is fraudulent, but Defendant argues that there is circumstantial evidence to that effect, including: (a) that Defendant never mentioned the lease when Plaintiff contacted him after Plaintiff acquired the Property (Watkins Decl., ¶¶ 5-8); (b) that Defendant aggressively defended the UD Proceeding, including arguing that Plaintiff had not properly acquired the Property and that others lived on the Property, but he never produced the lease (Watkins Decl., ¶¶ 9-10); and (c) that Defendant's sister, Janet Taylor, the successor trustee of the Trust after the death of Alice Dunning, stated that to her knowledge Defendant did not ever have a lease (Taylor Decl., ¶ 6).

The evidence that the lease is fraudulent is circumstantial, but circumstantial evidence is evidence. The evidence, and the inferences that may be drawn from the evidence, are sufficient here to defeat Defendant's motion for summary judgment. (See *Kaney v. Custance* (2022) 74 Cal.App.5th 201, 219-220; 3 Weil & Brown, California Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 10:272.1. To be clear, the Court is not suggesting that Plaintiff is entitled to summary judgment on this point; rather, the evidence is sufficient to support a reasonable inference that the lease is fraudulent. On this record, the trier of fact could reasonably believe Defendant and determine that the lease is valid, or the trier of fact could reasonably disbelieve Defendant, credit the circumstantial evidence cited by Plaintiff, and determine that the lease is a fraud.

Moreover, and independently, Code of Civil Procedure section 473c, subdivision (e), provides in part that "summary judgment may be denied in the discretion of the court if the only proof of a material fact offered in support of the summary judgment is an affidavit or declaration made by an individual who was the sole witness to

that fact.” In the unusual circumstances present here, the Court exercises its discretion under subdivision (e).

Defendant’s first argument is not a sufficient basis to grant his motion for summary judgment.

Second, Defendant argues that Plaintiff’s damages are speculative. The damages that Defendant cites as speculative, however, relate primarily to lost profits. It may well be that some of the damages that Plaintiff will not be able to prove a basis in fact to recover all of its claimed damages, but a summary judgment motion cannot be directed at only part of a damages claim. Among other items of damages, Plaintiff cites carrying costs and attorney’s fees associated with the UD Proceeding (DSUMF, No. 16); these items are not speculative.

On this record, the Court cannot conclude that all of Plaintiff’s damages are speculative as a matter of law. In addition, and independently, the Court cannot conclude as a matter of law that Plaintiff is not entitled to nominal damages. Accordingly, Defendant’s second argument is not a sufficient basis to grant his motion for summary judgment.

Third, Defendant argues that there is no legal basis for Plaintiff to recover attorney’s fees. But Defendant did not include in his notice of motion and motion a request for summary adjudication on this issue, as is required. (Code Civ. Proc., § 437c, subd. (f); Cal. Rules of Court, rule 3.1350(b); see also, e.g., *Gonzales v. Super. Ct.* (1987) 189 Cal.App.3d 1542, 1545–1546.) Moreover, and independently, there is no basis for a motion for summary adjudication directed to only one type of damages (other than punitive damages). (Code Civ. Proc., § 437c, subd. (f)(1).)

Defendant’s third argument is not a sufficient basis to grant his motion for summary judgment.

Fourth,

Defendant argues that, as a matter of law, there is no basis to award Plaintiff punitive damages. As noted above, however, Defendant did not properly move for summary adjudication of this issue (or any issue). In addition, and independently, as also noted above, Plaintiff has presented sufficient evidence to support a reasonable determination by the finder of fact that Defendant prepared a fraudulent lease in an attempt to stay on the Property; that finding, if supported by clear and convincing evidence, would be a sufficient basis to award punitive damages. (Civ. Code, § 3294, subds. (a) & (c)(1).)

Defendant's fourth argument is not a sufficient basis to grant his motion for summary judgment.

Defendant's motion is denied.

Conclusion

The Court
DENIES the motion of Defendant Wesley Dunning for summary judgment.

Plaintiff, as the prevailing party, is ordered to give notice.